

TEXAS ADMINISTRATIVE CODE: As in effect on 8/23/2026.

TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 3. AGENCY ADMINISTRATION

§558.253. Disclosure of Drug Testing Policy.

- (a) An agency must have a written policy describing whether it will conduct drug testing of its employees who have direct contact with clients.
- (b) If an agency conducts drug testing, the written policy must describe the method by which drug testing is conducted.
- (c) If an agency does not practice drug testing of its employees, the written policy must state that the agency does not conduct drug testing of its employees.
- (d) An agency must provide a copy of the policy to anyone applying for services from the agency and any person who requests it.

Source Note: The provisions of this §558.253 adopted to be effective February 1, 2002, 26 TexReg 9159; amended to be effective June 1, 2006, 31 TexReg 1455; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893.